

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	
	)	DIA NO. 98DPHSW030
	)	
REBECCA K. PANSEGRAU	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On July 24, 1998, the Iowa Board of Social Work Examiners (Board) denied the application of Rebecca K. Pansegrau (Applicant) for a license to practice social work at the master's level. The Applicant appealed, and a Notice of Hearing was issued on September 24, 1998.

The hearing was held on November 9, 1998 at 1:00 p.m. in the first floor hearing room, side 2, Lucas State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Bruce Buchanan, L.I.S.W., Chairperson; Jennifer Lock Oman, L.I.S.W.; Jim Yeast, L.M.S.W.; and Janice McCoy, L.B.S.W. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, served as the presiding officer for the Board. The Applicant appeared and was represented her counsel, Sharon Grier. The state was represented by Heather Adams, Assistant Attorney General. The hearing was tape recorded. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(1997) and 645 IAC 280.206.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(1997). The Board took a motion in open session which granted the Respondent licensure at the master's level. The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the Notice of Hearing, the testimony of the witnesses, and the following exhibits:

- State Exhibit A: Iowa Code section 154C.6(2)
- State Exhibit B: Iowa Code section 154C.1(3) "b"
- State Exhibit C: Application for Licensure with accompanying materials
- State Exhibit D: Denial Letter, 7/24/98
- Applicant Exhibit 1: Bachelor of Science degree, 2/26/77

Applicant Exhibit 2:	Master of Science degree, 12/20/97
Applicant Exhibit 3:	Certificate, Advanced Certified Alcohol and Drug Counselor
Applicant Exhibit 4:	Resume
Applicant Exhibit 5:	Memorandum, 12/10/97 (Stowe to Littrell)
Applicant Exhibit 6:	Training
Applicant Exhibit 7:	Job Description, Treatment Services Coordinator
Applicant Exhibit 8:	Job Description, Outpatient Counselor
Applicant Exhibit 9:	Letter (Croker to Board)
Applicant Exhibit 10:	Letter (Lewis to Board)
Applicant Exhibit 11:	Letter (Franzenburg to Board)
Applicant Exhibit 12:	Letter (Moore to Board)
Applicant Exhibit 13:	Letter (Croker to Board)

FINDINGS OF FACT

1. On March 25, 1998, the Applicant filed her application for licensure to practice as a social worker at the master's level. The application was denied on July 14, 1998. The reason stated for the denial was that the Applicant was not performing master level duties as of July 1, 1996. The Applicant appealed. (Testimony of Applicant; State Exhibits C, D)

2. The Applicant has been employed by the Substance Abuse Treatment Unit of Central Iowa from July 1983 to the present. Her current job title is Treatment Services Coordinator. The Applicant also performs the duties of an Outpatient Counselor. The duties of these positions constitute the practice of social work. The Applicant has far more than 4000 hours of experience in the practice of social work. (Testimony of Applicant; State Exhibit C; Applicant Exhibits 7-13)

3. The Applicant was granted a Bachelor of Science Degree in Sciences and Humanities from Iowa State University, with a Psychology major, on February 26, 1977. On December 20, 1997, the Applicant was granted a Master of Science Degree in Education from

Iowa State University. (Testimony of Applicant; Applicant Exhibits 1-2)

CONCLUSIONS OF LAW

In 1996, the Iowa legislature passed legislation mandating licensure for social workers in Iowa and specifying requirements for three levels of permanent licensure: bachelor social worker, master social worker, and independent social worker. Iowa Code section 154C.3. Requirements for licensure at the master level include possession of a master's or doctoral degree in social work and an examination. Iowa Code section 154C.3(1)(b)(1997).

However, the legislature also provided transitional or grand-parenting provisions for Applicants who have practiced social work for a certain period of time at a certain level. These transition provisions are found at Iowa Code section 154C.6 and allow exemptions from certain license requirements for qualified applicants who submit their applications prior to July 1, 1998. The Applicant has applied for licensure at the master level under these exemption provisions.

Iowa Code section 154C.6(2)(1997) provides, in relevant part:

2. *Master social worker.* An applicant for a license as a master social worker shall present evidence satisfactory to the board of any of the following:

a. That the applicant possesses a master's degree in social work from an accredited college or university approved by the board.

b. That the applicant possesses a graduate degree from an accredited college or university and has four thousand hours of employment experience in the practice of social work.

c. That the applicant is employed performing master level social work duties as defined in section 154C.1; subsection 3, paragraph "b", as of July 1, 1996, and has four thousand hours of employment experience in the practice of social work as of July 1, 1998.

Iowa Code section 154C.1(3)(b) provides, in relevant part:

3. "*Practice of social work*" means the professional activity of licensees which is directed at enhancing or restoring people's capacity for social functioning, whether impaired by environmental, emotional, or physical factors, with particular attention to the person-in-situation configuration. The social work profession

represents a body of knowledge requiring progressively more sophisticated analytic and intervention skills, and includes the application of psychosocial theory methods to individuals, couples, families, groups, and communities. The practice of social work does not include the making of a medical diagnosis, or the treatment of conditions or disorder of biological etiology which involve psychosocial aspects and conditions. The practice of social work for each of the categories of social work licensure includes the following:

a. Bachelor social worker provide psychosocial assessment and intervention through direct contact with clients or referral of clients to other qualified resources for assistance, including but not limited to performance of social histories, problem identification, establishment of goals and monitoring of progress, interviewing techniques, counseling, social work administration, supervision, evaluation, interdisciplinary consultation and collaboration and research of service delivery including development and implementation of organizational policies and procedures in program management.

b. Master social workers are qualified to perform the practice of bachelor social workers and provide psychosocial assessment, diagnosis, and treatment, including but not limited to performance of psychosocial histories, problem identification and evaluation of symptoms and behavior, assessment of psychosocial and behavioral strengths and weaknesses, effects of the environment on behavior, psychosocial therapy with individuals, couples, families, and groups, establishment of treatment goals and monitoring progress, differential treatment planning, and interdisciplinary consultation and collaboration.

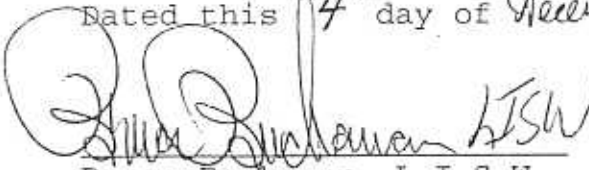
After reviewing the Applicant's application and exhibits, it became clear to the Board that an error had been made when her application for a license at the master's level was initially denied. The Applicant's master's degree had apparently been overlooked.

Since the Applicant has a master's degree in education, the relevant statutory transition provision is Iowa Code section 154C.6(2)(b). The Applicant is eligible for licensure at the master's level because she has a graduate degree from an accredited university approved by the Board, and she has more than 4000 hours experience in the practice of social work. For this reason, it is not necessary for the Board to reach the issue of whether the Applicant was performing master level social work duties as of July 1, 1996.

DECISION AND ORDER

IT IS THEREFORE ORDERED, that the application for a license to practice social work at the master's level, filed by Rebecca K. Pansegrau, pursuant to the transition provisions found at Iowa Code section 154C.6(2), is hereby GRANTED.

Dated this 4th day of December, 1998.


Bruce Buchanan, L.I.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General

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(CERTIFIED)

Any appeal to the district court from disciplinary action of the board or denial of license shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 280.208. The party who appeals a decision of the board to the district court shall pay the cost of the preparation of a transcript of the administrative hearing for the district court. 645 IAC 280.209.